

Subject: Re: Urgent ADA/FHA Accommodation – Omni Fort Worth
Date: Thursday, September 18, 2025 at 4:24:00 PM Central Daylight Time
From: Copeland, Katie
To: Glynis Zavarelli, Lile Benaicha, 'Brochstein, Amye', Michelle Sortor, Pamela Quinn
CC: John Douglas
Attachments: image.png, image.png

Each time Weinstein insists on placing me at a hotel that I have already demonstrated is medically ineffective, that is not an “offer” — it is a separate denial of my requested reasonable accommodation under the FHA and ADA. You have been repeatedly notified (in writing and with exhibits) that I am medically fragile, that I lack funds and transportation to move my medical equipment, and that generic hotel placements are harmful. Those repeated refusals are willful, cause ongoing medical harm, and each constitutes its own violation.

TDLR has outlined the factors its prosecutors weigh in sanctioning violations: seriousness, willfulness, good-faith mitigation, history of past violations, deterrence, and justice considerations. Each factor weighs heavily against Weinstein here: you knowingly forced a disabled tenant into a condemned unit, acted in bad faith by repeating ineffective placements, and ignored clear medical documentation. This is not an isolated mistake — it is a pattern.

Finally, as these violations become more egregious, I ask you to clarify: who is actually making these decisions? Is it Weinstein Properties — a housing provider obligated to comply with the FHA? Or is it Ms. Zavarelli as counsel — who has independent duties under federal law and the Texas Rules of Professional Conduct? Either way, accountability will attach directly to the decision-maker.

Accountability and scope of duties

- Housing provider liability: Weinstein, as the housing provider, has the FHA duty to provide an effective, individualized accommodation (42 U.S.C. § 3604(f)(3)(B)) and to avoid interference (§ 3617). Counsel’s role does not shield unlawful decisions.
- Individual participation liability: Individuals who personally participate in discriminatory decisions can be liable under the FHA, including for aiding/abetting and interference (see DOJ guidance; cf. *Hovsons v. Township of Brick*).
- Counsel’s professional obligations: I understand counsel’s role, but directing or implementing decisions that deny effective accommodation or condition it on unrelated terms risks both FHA exposure and professional-conduct concerns (e.g., Texas Rules 4.04, 8.04).

I have repeatedly compromised and presented concrete proposals for safe, medically effective accommodations. Your responses have been limited to placements already proven ineffective. That is not compliance; it is ongoing discrimination. Compliance requires immediate effective accommodation, not further deflection. Another rejection of my carefully created requests is a knowing and intentional act to subject me to more time in a poisonous environment. At the very least, that would be considered duress in our “interactive process.” So I suggest you approve my request - even if just for a few days - so that we can have a better discussion.

Warmly,
Katie Copeland
817-789-8498

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Date: Thursday, September 18, 2025 at 1:16 PM
To: Glynis Zavarelli <[gzavarelli@wandzlaw.com](mailto:gzarelli@wandzlaw.com)>, Lile Benaicha <lbenacha@weinsteinproperties.com>, 'Brochstein, Amye' <amyebrochstein@phly.com>, Michelle Sortor <msortor@wandzlaw.com>, Pamela Quinn <pquinn@weinsteinproperties.com>
Cc: John Douglas <john@jadouglaslaw.com>
Subject: Urgent ADA/FHA Accommodation – Omni Fort Worth

Dear Weinstein Properties and Counsel,

This is an urgent ADA/FHA accommodation notice. I recognize it may be difficult for others to fully understand the daily impact of my disabilities. I invite you to resolve this collaboratively because what I am requesting is not optional—it is a statutory requirement. I have attached a chart to help you understand my specific needs. In case you did not know, my access to prescribed home therapies and meal delivery services was cut off due to displacement, thus a per diem allowance and medically appropriate lodging are necessary accommodations. These supports are not luxuries; they are disability-related medical needs. A stable per diem ensures continuity of nutrition, hygiene, and therapeutic care until I am placed in ADA-compliant housing where services can resume.

I am willing to discuss reasonable compromises, but under the Fair Housing Act and Fort Worth Code §17-86, I am entitled to:

- Safe, ADA-compliant lodging of my choosing, not subject to arbitrary night-to-night extensions.
- A per diem or equivalent allowance to replace the loss of in-home therapies, nursing, and meal delivery caused by displacement.
- Assurance that retaliation will cease and that my housing stability will not be undermined for asserting these rights.

Enforcement & Regulatory Posture (for planning):

- **TDLR:** Investigator Ida Parmer (Investigator IV, Enforcement Division) confirmed this case was forwarded to the prosecution team on August 30; I am coordinating with their office.
- **City of Fort Worth:** I remain in active contact with multiple departments, including Code Compliance, Mayor's Committee on Persons with Disabilities, and the Human Relations Commission. While Code Enforcement has paused action pending TDLR's prosecution, they retain authority to declare the building uninhabitable to protect tenants.
- **Licensure prerequisites:** For ≥25 contiguous sq ft, TDLR notification is due ≥5 calendar days before remediation; protocol/work plan must be provided ≥1 day before any start. Please provide the notification number, start/stop dates, and current plan in advance. Ms. Zavarelli recently stated work would begin Monday, 9/22/25, but Investigator Parmer confirmed she has not received anything from The Bowery—meaning work cannot lawfully begin.

Accommodation Needed Today:

- **Hotel:** Omni Fort Worth (or functionally equivalent)
- **Check-in:** Today
- **Duration:** 3 weeks guaranteed, with option to extend through Oct 31, 2025
- **Rooming:** King suite now; transition to two adjoining rooms if my daughters return to my care
- **Supports:** Meal credits for medically appropriate diet; laundry access; portable HEPA

Medical Treatment Access:

Because of your recent refusal to provide effective accommodations, I was re-exposed to toxic mold for a week, worsening my condition. Immediate access to my treating physician, Dr. Johnson (Richardson), is also required. Approving transportation and treatment costs now prevents greater medical and liability exposure later. Four treating physicians have documented that mold exposure and displacement have significantly worsened my health.

Per Diem / Reimbursements:

- **Option A (actuals + prospective):** Reimburse past out-of-pocket food/transport (receipts / statements available) within 5 days. Going forward: \$80/day meals (federal M&IE) + \$30/day local transportation.
- **Option B (continuous per diem):** \$80/day meals and \$30/day local transportation from 6/27/25 through present and continuing until ADA-compliant permanent housing is secured.

Note: Laundry is separate from M&IE and will be reimbursed accordingly.

Deadline:

Please confirm the Omni booking and folio coverage, medical transport to Dr. Johnson, and your selection of Option A or B by **3:00 p.m. CT today, September 17, 2025**. *Identify the decision-maker with full authority.* Absent timely confirmation, I will treat further delay as ongoing discrimination and proceed with HUD intake via the City of Fort Worth and seek emergency relief.

Needs vs. Options

Needs vs. Options matrix (✓ met · Δ partial · ✗ not met)

Legend: ✓ Met · Δ Partial · ✗ Not met

Medical/Functional Need	Holiday Inn Express	Nobleman	Bowie House	Hotel Drover	Crescent	Omni	Permanent Relocation
Bathub / hot tub (pain, POTS)	✗	✗	Δ (hot tub across hall)	✓	✓	✓	✓
Therapy space (PT/OT/ST + caregivers)	✗	✗	✗	Δ (suite possible or 2 rooms)	✓ Suite or 2 rooms available	✓ Suite or 2 rooms available	✓
Kitchen for anti-inflammatory diet	✗	Δ (limited)	✗	Δ (unknown)	Δ (unknown)	Δ No, but includes breakfast every day (more options than Holiday Inn)	✓
Washer/dryer for hygiene	✗	✗	✗	Δ (No but hotel can do laundry for fee)	Δ (No but hotel can do laundry for fee)	Δ (No but hotel can do laundry for fee)	✓
Clean air / filtration (MCAS)	✗	✗	Δ	✓ (filters/PURE)	Δ (unknown)	✓ More rigorous air maintenance + Portable air purification units	✓
ESA yard/patio (ground access)	✗	✗	✗	✗	✗	✗	✓
Stability (30+ days, not week-to-week)	✗	✗	Δ	✓ (negotiated rate + tax-exempt)	Δ (unknown)	✓ At least 3 weeks - could likely negotiate	✓
Transportation provided / accessible location	✗	✗	✗	Δ (central access)	Δ (nearby restaurants and 7-11)	Δ (nearby restaurants, free breakfast)	✓

Item	Exact ask	Why (medical/legal)	Approve
Hotel	Omni Fort Worth, 21 nights starting tonight; King suite → two adjoining rooms if needed; folio direct-billed	Hydrotherapy, clean air, stability; FHA/ADA effectiveness	☐ Approved
Meals	\$80/day per diem or equivalent meal credits adequate for anti-inflammatory diet	MCAS/Long COVID nutrition; FHA effectiveness	☐ Approved
Local transport	\$30/day stipend while displaced	Access to care/food; not included in M&IE	☐ Approved
Medical transport	Fund round-trip travel to Dr. Johnson (Richardson) for scheduled and follow-ups	Treating physician access post re-exposure	☐ Approved
Laundry	Hotel laundry covered or \$15/day stipend	Hygiene/MCAS triggers during multi-week stay	☐ Approved
HBOT	Authorize hyperbaric oxygen treatments, supplements, testing, etc. per Dr. Johnson's plan	Mitigate injury from re-exposure; prevent irreversible decline, significant cost savings	☐ Approved
Past expenses	Option A: reimburse actuals for food/transport since displacement; or Option B: per diem retro at \$80 + \$30	Stabilize nutrition/transport continuity; fair, simple administration	☐ A ☐ B

I believe these are your only options:

Path	Up-front cost (21 nights)	Medical impact	Legal risk	Total exposure
Approve Omni + supports	Hotel + M&IE + transport + laundry + HBOT	Stabilizes; prevents irreversible decline	Low (meets FHA/ADA duties)	Predictable and limited
Place in HIE-type hotel	Lower room rate; no supports	Harm escalates; ER/relapse risk	High (ineffective accommodation + \$3617)	High and compounding
Delay/deny	Near zero now	Worsening injury; specialty care required	Very high (HUD/DOJ, injunction, damages)	Maximized

Sincerely,

Kathryn (Katie) Copeland

Phone: 817-789-8498 | Email: k.m.copeland@tcu.edu

Legal Citations:

42 U.S.C. § 3604(f)(2) – Discrimination in terms, conditions, or privileges of rental housing
42 U.S.C. § 3604(f)(3)(B) – Failure to make reasonable accommodations when necessary
42 U.S.C. § 3617 – Interference, coercion, or intimidation in exercising rights
Fort Worth Municipal Code §17-86 (Ordinance 11075)

Why I Am Sending This Detail

As a courtesy, I have spelled out not only what accommodations I require but also **why each request is medically and legally necessary**. I am not obligated to provide this level of explanation under the ADA or FHA, but I have done so to streamline the process and make compliance easier for you. The attached chart further summarizes the needs → reasons → legal obligations, so there can be no confusion about what is required. I encourage you to engage counsel familiar with FHA and ADA laws because this ongoing conflict is causing much more harm to my health.